

MOCK TRIAL PROGRAM CONSTITUTION

May 2025

The mission of the Paladin Mock Trial Program is to develop and polish students' public speaking skills and critical and analytical faculties within a competitive environment in the context of trial advocacy simulations and to do so in a way that promotes professionalism, civility and justice.

Article I Title

The title of this organization shall be the Mock Trial Program.

Article II Membership

Any undergraduate student at Furman University who is currently enrolled may be a member of the organization. Membership does not guarantee a position on one of the program's competition teams. Students' roles and team assignments are chosen by the program's coaching staff and the Mock Trial Faculty Program Director. Being a member of the Furman University Mock Trial Program is a privilege, not a right.

Article III Functions

Section I. The Mock Trial Program shall make links between the Greenville and larger legal community and Furman University.

Section II. The Mock Trial Program shall promote excellence in public speaking and a rigorous, high-quality academic experience for its members.

Section III. The Mock Trial Program shall promote the development of interpersonal skills that are required to work effectively as a team.

Article IV Elections

Section I. Elections for officers for the next academic year shall take place in May.

Section II. The Mock Trial Faculty Program Director shall appoint the new President. The current President will accept nominations for Five (5) days for Executive Vice President, Vice President of Operations, Vice President of Finance, Vice President of Communications, Director of Funds, Director of Recruitment and Retention and Director of Public Relations before the membership. Any member in good standing may be nominated or nominate another member.

Section III. The slate of proposed candidates shall be presented to the membership for voting. The candidate with the most votes shall be deemed the winner.

Section IV. The winning candidates for office shall then be reviewed and approved by the Faculty Program Director before becoming officially candidate-elects.

Article V Officers

Section I. The Executive Committee shall consist of the President, Executive Vice President, Vice President of Operations, Vice President of Finance, Vice President of Communications, Director of Funds, Director of Recruitment and Retention and Director of Public Relations. The term of office for the Executive Council shall be from 1 June to 31 May.

Section II. The President shall:

- a. preside over all meetings of the Mock Trial Program;
- b. preside over Executive Committee meetings;
- c. serve as the primary liaison between Mock Trial Program Members and the Faculty Program Director and coaching staff;
- d. serve as the student representative of the Mock Trial Program.

Section III. The Executive Vice President shall:

- a. preside over Mock Trial Program meetings in the absence of the president and otherwise assist the president in the execution of his/her duties;
- b. work with the Mock Trial Program Faculty Program Director in coordinating external fundraising efforts and event planning.

Section IV. Vice President of Operations shall:

- a. keep in good order a record of each meeting's minutes;
- b. work with the coaching staff and Mock Trial Program Faculty Program Director on scheduling of events.

Section V. The Vice President of Finance shall:

- a. keep the budget in order;
- b. update the Mock Trial Faculty Program Director and president on budgetary needs.

Section VI. The Vice President of Communications shall:

- a. work with the Mock Trial Faculty Program Director in publicizing the program on campus and in the Greenville and greater legal community.

Section VII. The Director of Recruitment and Retention shall:

- a. assist the Vice President of Operations with his/her needs;
- b. works with the Mock Trial Faculty Program Director on recruitment efforts.

Section VIII. The Director of Funds shall:

- a. assist the treasurer with his/her needs.

Section IX. The Director of Public Relations shall:

- a. assist the Vice President of Communications;
- b. assists with taking pictures for social media and other publications.

Article VI. Committees

Section I. Committees may be established from time to time by the Executive Committee.

Article VII. Budgetary Matters

Section I. The Executive Committee shall work with the Mock Trial Faculty Program Director in proposing an annual budget. The budget shall be proposed in early March.

Article VIII. Expectations

Section I. Academics. All Mock Trial Program Members are expected to carry at least a 2.5 GPA each semester and will be evaluated throughout the year. The Mock Trial Faculty Program Director will receive periodic academic reports on all Mock Trial Program Members. If a Program Member believes he/she may fall below the required GPA, then the Program Member shall immediately report this to the Faculty Program Director. The Faculty Program Director, may at the Director's discretion, mandate the member to complete additional academic requirements, including but not limited to study hall or time away from the Program .

Section II. Alcohol. Mock Trial Program Members are not allowed to consume alcohol unless they are 21 years of age, in accordance with State law and University policy. During practice or when traveling for or virtually participating in tournaments with the team, alcohol is prohibited at all times regardless of age.

Section III. Social Media. Social media activities detrimental to the program with any negative or demeaning comments/photos in the opinion of the Executive Committee and/or the Mock Trial Faculty Program Director are strictly prohibited.

Section IV. Criminal Charge(s) and/or Conviction. Any Mock Trial Program member who is arrested, charged and/or convicted of a felony and/or misdemeanor charge will be subject to a review process by the Mock Trial Faculty Program Director and the Executive Committee and may be subject to the Conduct section of the Constitution.

Section V. University Policies. Each Mock Trial Program Member is responsible for knowing and abiding by the policies and procedures contained in the Furman University Student Handbook and all other applicable University policies.

Section VI. Coaches. The Mock Trial Program is a coach guided program, and all Program members are expected to adhere to the directions of any coaching staff member. Program members should immediately inform the Faculty Program Director if they have questions or concerns about a coaching staff member.

Article IX. Conduct

Section 1. The Mock Trial Program has a zero tolerance policy for behavior that is detrimental to the Mock Trial Program. Any behavior that is unbecoming to the team or coaches or is in violation of the Mock Trial Program Expectations and/or Constitution will be met with zero tolerance and will have consequences.

Section II. Consequences will be decided based on: the severity of the infraction, how it affected the team as a whole, and if the member(s) involved have had previous team or University violations. The Executive Committee may propose sanctions for infractions of Mock Trial Program rules and/or the Constitution to the Faculty Program Director for final approval. The Faculty Program Director may also institute sanctions at his or her discretion.

- a. Warning. Formal warnings may be issued by the coaching staff to Program Members without prior consultation with the Faculty Program Director or Executive Committee. Any formal warnings will be reported to the Faculty Program Director.

- b. Probation. Probation may be issued by the Faculty Program Director or the Executive Committee with the consent of the Faculty Program Director.
- c. Interim Suspension. Any Mock Trial Program Member charged with a violation of the Student Handbook, including but not limited to the Sexual Misconduct Policy, or a criminal arrest, charge or conviction may be suspended from the Mock Trial Program during the course of the investigation and/or adjudication proceedings in accordance with University policies and procedures.
- d. Suspension. Suspensions may be issued by the Faculty Program Director or the Executive Committee with the consent of the Faculty Program Director.
- e. Expulsions. Expulsions may be issued by the Faculty Program Director or the Executive Committee with the consent of the Faculty Program Director.
 - i. Reinstatement: Expulsion is designated as a penalty that ordinarily will result in the Program Member's permanent removal from the Mock Trial Program. However, aside from the Appeal process described below, a member who has been expelled may petition for reinstatement to the Mock Trial Program. At the beginning of the second academic semester after the member has been expelled, the former program member may submit a petition to the Faculty Program Director and the Executive Committee. Any such petition must, at a minimum, explain how the conduct that led to the expulsion has been remedied and why it will not be a problem again in the future.

Section V. Appeals. Any Mock Trial Program Member sanctioned under these procedures may appeal within five (5) working days, in writing, to the Mock Trial Faculty Program Director. In the event of an appeal, a review committee, consisting of the Mock Trial Faculty Program Director, President and Executive Vice President, shall consider all factors, including any extenuating circumstances. Should the President or Executive Vice President be unable to serve or have a conflict, the Faculty Program Director will appoint another member of the Executive Committee. Within five (5) working days after the appeal is submitted, the committee shall issue its decision which shall be final with no further right of review.

Article X. Removal of Officers

Section I. To bring forth impeachment proceedings, reasonable cause must exist:

- a. Failure to faithfully execute duties in accordance with Constitution;
- b. Failure to abide by the Expectations in the Constitution;
- c. Failure to abide by the program rules established by the Mock Trial Faculty Program Director.

Section II. An Officer shall be immediately removed from office, if the Officer is subject to suspension or expulsion from the Mock Trial Program, OR if a petition bearing the signature of 5 or more members of the Mock Trial Program is brought to the Faculty Program Director requesting an impeachment proceedings against any Mock Trial Program officer.

Section III. Impeachment proceedings shall take place in front of the membership and presided over by the President, or by the next officer in order of succession, should the President be the officer in question.

Section IV. A simple majority vote by the membership will determine the particular Representative's impeachment.

Section V. Upon conviction, the offending officer shall be automatically removed from the leadership of the Mock Trial Program, and an appropriate election shall be conducted within two weeks of the removal to provide for his/her replacement.

Article XI. Amendments

Section I. Amendments to this constitution must be introduced at a Mock Trial Program meeting either in person or virtually via email.

Section II. A two-thirds (2/3rds) vote by the membership of the Mock Trial Program is required to amend this constitution.

Section III. Before enactment, all amendments must be submitted to SGA for approval.